

26SMCV00114 26SMCV00114

County: los-angeles

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Case Number: 26SMCV00114 Hearing Date: July 9, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT 207

HEARING DATE July 9, 2026

CASE NUMBER 26SMCV00114

MOTION Motion

to Vacate/Set Aside Entry of Default and Default Judgment

MOVING PARTY Defendant Joe

Reegan

OPPOSING PARTY Plaintiff DPP9

Owner, LLC

MOTION

This case arises from an alleged unlawful detainer.

On January 5, 2026, Plaintiff DPP9 Owner, LLC ("Plaintiff") filed suit against Defendant Joe Reegan ("Defendant") and Does 1 to 100, alleging a single cause of action for Unlawful Detainer. On January 27, 2026, Plaintiff served Defendant by posting, as ordered by the Court on January 22, 2026. Default was entered on March 3, 2026, and the Doe defendants were dismissed on March 11, 2026.

The Court entered default judgment on April 6, 2026.

Defendant now moves to (1) vacate the judgment; (2) set aside the entry of default; (3) quash service of the summons and complaint for lack of personal jurisdiction; (4) recall and quash any writ of possession or execution; and (5) permit Defendant to file the proposed Answer.

Plaintiff opposes the motion and Defendant replies.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests the Court to take
judicial notice of the following:

Exhibit 1: Plaintiff's Complaint, filed January 5, 2026.

Exhibit 2: Application and Order to Serve Summons by Posting for Unlawful Detainer, filed January 22, 2026.

Exhibit 3: Declaration of Non-Service as to Joe Reegan, executed January 21, 2026.

Exhibit 4: Proof of Service of Summons, by posting and mailing on January 27, 2026, as to Joe Reegan.

Exhibit 5: Request for Entry of Default filed March 3, 2026.

Exhibit 6: Notice of Entry of Default Judgment served upon the Defendant by mailing on April 7, 2026.

Exhibit 7: Writ of Execution/Possession issued April 7, 2026.

Judicial notice may be taken
of records of any court in this state.

(Evid. Code, § 452, subd. (d)(1).)

Because the above exhibits are all part of the Court's record for this case, the Court may take judicial notice of them. (Ibid.) However, "while courts are free to take judicial notice of the existence of each document in a court file, including

the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes judicial notice of the existence, filing, and legal consequences of the above documents filed in this matter as court records, but not the absolute truth of the allegations or other hearsay statements contained therein.

ANALYSIS

I.

CODE OF CIVIL PROCEDURE SECTION 473, SUBD. (B) – DISCRETIONARY AND MANDATORY RELIEF

“Proceeding to judgment in the absence of a party is an extraordinary and disfavored practice in Anglo–American jurisprudence: The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (Au-Yang v. Barton (1999) 21 Cal.4th 958, 963 [cleaned up].)

Code of Civil procedure section 473 “includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 25 (hereafter Minick).) “Section 473 is a remedial statute to be “applied liberally” in favor of relief if the opposing party will not suffer prejudice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (Minick, supra, 3 Cal.App.5th at p. 24 [cleaned up].)

The party or the legal representative must seek such relief “within a reasonable time, in no case

exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b)); see *Rapley v. Campbell* (1994) 8 Cal.4th 975, 980 [“because more than six months had elapsed from the entry of default, and hence relief under section 473 was unavailable”]; *People v.*

The North River Ins. Co. (2011) 200 Ca.App.4th 712, 721 [motion for relief under section 473 must be brought “within a reasonable time, in no case exceeding six months”]. “The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period.” (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340, citations omitted.)

A.

DISCRETIONARY

RELIEF

Per Code of Civil Procedure

section 473, subdivision (b), a court may “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

B.

MANDATORY

RELIEF

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

(Code Civ. Proc., § 473, subd. (b).) “In considering whether the trial court properly denied relief under section 473(b), the first question is the sufficiency of defendants' showing of attorney fault, if believed, to trigger the mandatory relief provisions of that statute.” (*Standard Microsystems Corp. v. Winbond*

Electronics Corp. (2009) 179 Cal.App.4th 868, 896, disapproved on other grounds by Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830 (hereafter Standard).) "Under section 473(b), a party is entitled to relief from a default and resulting judgment whenever, on timely application for relief, his attorney 'attest[s] to his or her mistake, inadvertence, surprise, or neglect' in connection with the default or the judgment." (Ibid.)

Defendant argues that the service by posting was ineffective because Plaintiff failed to demonstrate the requisite diligence in attempting to serve Defendant before resorting to posting because service upon the concierge of Defendant's controlled-access building was never attempted.

The Declaration of Diligence indicates a process server attempted to personally serve Defendant three times, on January 14, 2026 at 2:00 p.m.; on January 15, 2026 at 8:05 a.m.; and on January 17, 2026 at 9:14 a.m. On at least one of the occasions, security personnel escorted the process server to Defendant's Penthouse. At that time, the process server could hear somebody inside the unit, but no one answered when he knocked.

On the basis of the Declaration of Diligence, the Court found (and still finds) that Plaintiff exhausted all reasonable efforts to personally serve Defendant before resorting to posting.

Therefore, the Court denies Defendant's motion under Code of Civil Procedure section 473, subdivision (b) under the theory that service by posting failed to confer personal jurisdiction over Plaintiff.

II.

CODE OF CIVIL PROCEDURE SECTION 473.5

In the alternative, Defendant argues that the default and default judgment should be set aside under Section 473.5 on the grounds that Defendant did not receive actual notice of the summons.

"When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on

the party of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5.)

In support, Defendant advances his own declaration which provides:

4. I first learned that this lawsuit existed on June 1, 2026, when a deputy from the Los Angeles County Sheriff's Department came to my door and handed me a notice to vacate. I came to the door and accepted the notice. A true and correct copy of that notice is attached as Exhibit C.

5. Until June 1, 2026, I did not know that I had been sued, that a case had been filed against me, or that any judgment had been entered against me.

6. I never found a summons and complaint, or any court papers, posted or taped to my door at any time,

7. My building is a controlled-access residential building. A visitor cannot reach my unit on his own. A visitor must check in at the concierge or front desk. The concierge then calls or texts me to ask whether I will permit the visitor to come up. Only if I give permission does the concierge escort the visitor, using a key fob, in the elevator to the door of my unit.

8. I was not aware that anyone attempted to serve me with legal papers in January 2026. I did not decline to answer the door for any process server, and I did not avoid anyone attempting to serve me.

[...]

10. No process server ever left any papers with the concierge or front desk for me, and no one at the building ever told me that anyone had tried to serve me with legal papers.

11. I never received any copy of the summons and complaint by mail.

12. In my building, ordinary mail is delivered to individual mailboxes, but certified mail is signed for by the concierge and

held at the front desk until the resident retrieves it.

13. I never signed for any certified mail relating to this case. I have never signed for any certified mail packet concerning this matter at any time.

14. When the Sheriff's deputy knocked on June 1, 2026, I answered the door promptly, as I would have for anyone who reached my door.

[...]

17. I want to defend this case. I did not have the opportunity to do so because I never knew it had been filed until after judgment had already been entered against me.

18. During the period when these papers are said to have been posted and mailed, I was having ongoing problems receiving mail and documents at the building. Tracy Robinson, the property manager responsible during that period, left PMP Management at the end of April 2026. Since her departure, I have received my mail and documents at the building without the problems I had experienced before.

(Reegan

Decl. ¶¶ 4-18.)

In opposition, Plaintiff challenges Defendant's purported lack of actual notice by way of a January 28, 2026 email, which Defendant sent the day after the summons was posted to the exterior of Plaintiff's building, and which raises concerns about management's conduct, the December Three-Day Notice to Pay Rent or Quit, and demands that evidence be preserved.

But the Court notes that the January 28 email does not address the summons and complaint. Rather, it addresses only Plaintiff's grievances with management and the December notice. As such, the timing of the email alone does not rebut Defendant's assertion that he was unaware of the instant lawsuit until a Deputy Sheriff knocked on his door on June 1, 2026.

Plaintiff also argues that Defendant's narrative strains credulity and

requires that the Court believe that every attempted notice did not reach him. But Defendant's declaration explains in detail exactly why he did not receive the mailed notice, any notice that may have been sent to the building's management, and Plaintiff does not dispute that its process server never personally served Defendant or posted the notice on Plaintiff's door. It is not inconceivable that Plaintiff would not have seen a notice posted on the exterior of the building.

CONCLUSION

For the foregoing reasons, the Court grants in part Plaintiff's motion to vacate the default judgment, to set aside the entry of default, and to recall/quash the writ of execution, due to lack of actual notice under Code of Civil Procedure section 473.5. However, the Court denies Defendant's request to quash service or vacate the judgment as void, under Code of Civil Procedure section 473, subdivisions (b) and (d).

Further, the Court orders Defendant to file and serve the proposed Answer on or before July 23, 2026.

Further, the Court sets a Trial Readiness Conference on September 4, 2026 at 8:30 A.M. in Department 207.

Defendant shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 9, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court